



File No.: EXP202315427

SANCTIONING PROCEDURE RESOLUTION

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST. A.A.A (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on July 4, 2023. The complaint is directed against PROSULTING, S.L.N.E. with NIF B86008141 (hereinafter, PROSULTING). The reasons for the complaint are as follows:

On February 7, 2023, the complainant sent an email to atencion-cliente@prosulting.es (PROSULTING) at the recommendation of a work colleague, a union delegate. The objective is to obtain a training grant for the Security Director course, as well as for the computer hacking course. The complainant entrusts PROSULTING with the management of the subsidy and requests a place for the indicated courses.

Attached, the complainant provides the following documentation:

1. The signed form for the "Call for Public Grants for the Execution of State-Wide Training Programs, Primarily Aimed at Employed Persons."
2. A copy of their ID.
3. The header of their payslip.

Subsequently, there is a series of messages in which PROSULTING repeatedly informs the complainant of deadlines, requirements, and necessary documents to access the course subsidized by SEPE, urging the complainant to have the documentation ready at the appropriate time.

In their email dated 04/12/23, PROSULTING, due to the initial impossibility of offering the free course fully subsidized by SEPE, offers their own course with a 40% discount on the official price for those participants who do not meet the requirements of the regulation.

Finally, in an email dated June 27, 2023, PROSULTING requests from the complainant the same documentation already sent by them on February 7, 2023.

The complainant responds to PROSULTING via email on July 2, 2023, at atencion-cliente@prosulting.es, accusing them of non-compliance with the GDPR, for not adequately informing about the data processing, nor about the data controller, as well as for the insistence and reiteration of requests for the necessary documents to process their application.

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The complainant also points out that, since the company being complained about does not provide sufficient guarantees, they have requested via email information about the processing of their data, recipients, and express their opposition to the transfer of their data for the processing of the SEPE grant, without having received a response by the date of submission to the AEPD of the complaint (04/07/2023).

The complainant states that they submitted the documentation to PROSULTING on February 7, 2023, without any prior verification on their part and continued for months exchanging messages with PROSULTING, under the erroneous belief that the course in question was managed by the Works Committee of the entity where they work.

They provide a thread of emails exchanged with the entity being complained about. In none of the emails sent to the complainant requesting documentation was there any information regarding personal data protection.

SECOND: A preliminary diligence from the AEPD dated July 9, 2023, is incorporated, containing 15 pages of screenshots from the Privacy Policy of the official website of PROSULTING, prosulting.org.

THIRD: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to

PROSULTING for them to analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was recorded on September 19, 2023, as noted in the acknowledgment of receipt in the file.

FOURTH: On October 4, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FIFTH: On October 13, 2023, a response letter from PROSULTING was received by this Agency, expressing their total incomprehension regarding such a complaint, given that the complainant is already participating in one of the trainings in question and would even be willing to withdraw said complaint if requested.

PROSULTING informs that it is an educational entity that collaborates, among others, with SEPE (General Directorate of the State Public Employment Service). They also state that PROSULTING guarantees the security and protection of the data of its students or potential students according to current regulations, and therefore they believe that the personal data protection of the complainant, or anyone in general, has not been violated in any case.

SIXTH: According to the report obtained from the AXESOR tool, the entity PROSULTING, S.L.N.E. is a small company, established in 2010, with a turnover of €167,000 in 2019.

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SEVENTH: On April 17, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the accused party for the alleged infringement of Article 13 of the GDPR, classified under Article 83.5 of the GDPR.

EIGHTH: PROSULTING has not submitted any allegations regarding the initiation agreement, but on April 30, 2024, a voluntary payment of €800 was received by the AEPD, without specifying, as is required, the reason for the 20% reduction to which it is entitled for voluntary payment at any time prior to the conclusion of the proceedings.

NINTH: A first letter was sent to them on May 30, 2024 (with acknowledgment of receipt on May 31, 2024) requesting that, within ten days, they provide the waiver of the mandatory administrative route for the 20% reduction of the fine and also clarify which of the two possible reductions they were claiming.

TENTH: In the absence of a response from PROSULTING, a reiteration was made on June 27, 2024, emphasizing the need to rectify the reason for the 20% reduction, with a new deadline of ten days from the acknowledgment of receipt on July 8, 2024, warning that if this period elapsed without PROSULTING S.L.N.E. presenting any statement in this regard, the proceedings would continue, without the requested reduction being applicable.

ELEVENTH: On September 11, 2024, a proposal for resolution was made, proposing that PROSULTING, S.L.N.E., with NIF B86008141, be sanctioned for an infringement of Article 13 of the GDPR, classified under Article 83.5 of the GDPR, with a fine of €1,000 (one thousand euros) and also within ONE MONTH, to prove compliance with the mechanisms that guarantee the provision of the information required for interested parties under Article 13 of the GDPR at the time of obtaining their personal data via email.

It is also proposed that the AEPD proceed with the reimbursement of the €800 to PROSULTING's bank account, as the payment is invalid due to the lack of specification of the reason for the reduction of the fine.

TWELFTH: On September 12, 2024, a new letter was sent to PROSULTING, with acknowledgment of receipt on September 17, 2024, requesting the company's account number to proceed with the reimbursement of the €800 transferred.

THIRTEENTH: To date, PROSULTING has not specified the reason for the 20% reduction to which it is entitled (either acknowledgment of responsibility or termination of the proceedings), as is required,

nor has it submitted allegations regarding the proposal for resolution, nor has it provided the requested account number to proceed with the reimbursement.

In view of all that has been acted upon by the Spanish Agency for Data Protection in this procedure, the following facts are considered proven,

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PROVEN FACTS

FIRST: On February 7, 2023, the complainant sent an email to atencion-cliente@prosulting.es (PROSULTING) upon the recommendation of a colleague at work, a union delegate, from whom they received the email address as well as the information. The objective is to obtain a training grant for the Security Director course, as well as for the computer hacking course. The complainant entrusted PROSULTING with the management of the subsidy and requested a place for the indicated courses. Attached, the complainant provided the following documentation:

1. The signed form for the "Call for Public Grants for the Execution of State-Level Training Programs, Primarily Aimed at Employed Persons."
2. A copy of their ID.
3. The header of the payslip.

SECOND: Subsequently, there were a series of messages in which PROSULTING repeatedly informed the complainant of deadlines, requirements, and necessary documents to access the course subsidized by the SEPE, urging the complainant to have the documentation ready for the opportune moment.

THIRD: In their email of April 12, 2023, PROSULTING, due to the initial impossibility of offering the free course fully subsidized by the SEPE, offered its own course with a 40% discount on the official price for those participants who do not meet the requirements of the regulation.

FOURTH: Finally, in an email dated June 27, 2023, PROSULTING requested from the complainant the same documentation that had already been sent by them on February 7, 2023.

FIFTH: In none of the communications directed to the complainant was information provided regarding the aspects required by Article 13 in relation to the protection of personal data.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures...

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Processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Unfulfilled Obligation

The GDPR aims to guarantee the right to the protection of personal data of individuals. Article 4.1 of the GDPR defines "personal data" as "any information relating to an identified or identifiable natural person" ("the data subject");

Article 4.2 of the GDPR defines "processing" as "any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use,

communication by transmission, dissemination or otherwise making available, alignment, combination, restriction, erasure or destruction;"

PROSULTING, in its capacity as an educational entity, collects personal data through the contact and subscription forms available on its website, as well as through emails. Notwithstanding that PROSULTING also informs the claimant about the grants and courses from SEPE in its emails, the main content of the information sent is the promotion of its own courses with a 40% discount on the initial price. For this reason, it is clear that PROSULTING is the data controller, as it determines the purposes and means of processing personal data, in accordance with Article 4.7 of the GDPR.

Article 13 of the GDPR specifies the information to be provided by the controller when obtaining personal data directly from the data subject:

"1. When personal data relating to a data subject is obtained from the data subject, the controller shall provide the data subject with all the information indicated below at the time of obtaining the data:

- a) the identity and contact details of the controller and, where applicable, of its representative;
- b) the contact details of the data protection officer, where applicable;
- c) the purposes of the processing for which the personal data are intended and the legal basis for the processing;
- d) where the processing is based on Article 6(1)(f), the legitimate interests pursued by the controller or a third party;
- e) the recipients or categories of recipients of the personal data, where applicable;
- f) where applicable, the intention of the controller to transfer personal data to a third country or international organization and the existence or absence of an adequacy decision by the Commission, or, in the case of transfers referred to in Articles 46 or 47 or Article 49(1), second paragraph, reference to the appropriate or suitable safeguards and the means to obtain a copy of them or the place where they have been made available.

2. In addition to the information mentioned in paragraph 1, the controller shall provide the data subject, at the time of obtaining the personal data, with the following information necessary to ensure fair and transparent processing of data:

- a) the period for which the personal data will be stored or, if that is not possible, the criteria used to determine that period;
- b) the existence of the right to request from the controller access to personal data relating to the data subject, and their rectification or erasure, or the restriction of processing, or to object to the processing, as well as the right to data portability;
- c) where the processing is based on Article 6(1)(a) or Article 9(2)(a), the existence of the right to withdraw consent at any time, without affecting the lawfulness of the processing based on the consent before its withdrawal;
- d) the right to lodge a complaint with a supervisory authority;
- e) whether the provision of personal data is a statutory or contractual requirement, or a requirement necessary to enter into a contract, and whether the data subject is obliged to provide the personal data and is informed of the possible consequences of failing to provide such data;
- f) the existence of automated decision-making, including profiling, referred to in Article 22(1) and (4), and, at least in those cases, meaningful information about the logic involved, as well as the significance and the envisaged consequences of such processing for the data subject.

3. When the controller intends to further process personal data for a purpose other than that for which they were collected, it shall provide the data subject prior to that further processing with information on that other purpose and any other relevant information in accordance with paragraph 2."

"4. The provisions of paragraphs 1, 2, and 3 shall not apply when and to the extent that the data subject already has the information."

The obligation to inform the data subject of the aspects provided for in Article 13 of the GDPR should have taken place as soon as the respondent communicated with the claimant, in the first email sent, except for those aspects that the data subject already knows beforehand, as determined in paragraph 13.4 of the GDPR.

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The claiming party submits, on their own initiative, a signed request along with the necessary identification documentation to PROSULTING, so that it can process a grant from SEPE on their behalf and for participation in the Security Director training course, taught by PROSULTING. PROSULTING, for its part, repeatedly provides the claiming party with information regarding the status of the SEPE grant application process, in several subsequent emails between February and June 2023, but the main purpose of the communications sent remains, primarily, to promote its own courses.

However, the claiming party, in the document submitted to the AEPD on 04/07/2023, states that “at no time have I been informed of who is responsible for the data, to whom I can address myself, and what the identifying data of the company are.” They also assert that: “I only have a web link to a company with no activity on the website since 2022.”

In the preliminary diligence of 09/07/2023, the AEPD, using the email address used by the claimant (“atencion-cliente@prosulting”) as a search criterion on Google, finds the following in third place:

“Prosulting <https://www.prosulting.org-privacy-policy-2>

Privacy Policy - Online courses ... prosulting.org. and whose contact email is rgpd@prosulting.org for customer service. Data requested on the website and purpose of ...”

However, on 18/09/2023, the AEPD verified that indeed the website of the claimed party, “prosulting.org,” is not operational.

Recital 58 of the GDPR provides for the possibility of providing the necessary information through a website:

“(58) The principle of transparency requires that all information addressed to the public or to the data subject be concise, easily accessible, and easy to understand, and that clear and plain language be used, and, where appropriate, be visualized. This information could be provided electronically, for example, when addressed to the public, through a website (...)”

Although the Privacy Policy on its website, <https://www.prosulting.org>, details the information required by Article 13 of the GDPR, there is no reference to either the website or information in the emails provided that allows the claiming party to consult and ensure compliance with the GDPR, and, in particular, with all the information provided for in Article 13, when collecting data from the data subject.

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In any case, it cannot be accepted that the data subject should have to conduct any search, such as the one carried out by this AEPD, to access the privacy policy of PROSULTING.

III

Classification of the infringement of Article 13 of the GDPR

In accordance with the evidence provided, the aforementioned infringement of Article 13 of the GDPR is confirmed, which constitutes the commission of the infringement classified in Article 83.5.b) of the GDPR, which under the heading “General conditions for the imposition of administrative fines” states:

“Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to 4% at most of the total annual global turnover of the previous financial year, opting for the higher amount: a) (...) b) The rights of data subjects under Articles 12 to 22;”

For mere prescription purposes, Article 72.1 h) of the LOPDGDD qualifies as very serious “The omission of the duty to inform the affected party about the processing of their personal data in accordance with the provisions of Articles 13 and 14 of Regulation (EU) 2016/679 and 12 of this Organic Law.”

The statute of limitations for very serious infringements provided for in Organic Law 3/2018 is three

years.

IV

Sanction for the infringement of Article 13 of the GDPR

The corrective powers of the Spanish Data Protection Agency, as the supervisory authority, are established in Article 58.2 of the GDPR. Among them is the power to impose an administrative fine in accordance with Article 83 of the GDPR -Article 58.2 i)-, or the power to order the controller or processor to ensure that the processing operations comply with the provisions of the GDPR, where appropriate, in a specified manner and within a specified timeframe -Article 58.2 d)-.

According to the provisions of Article 83.2 of the GDPR, the measure provided for in Article 58.2 d) of the aforementioned Regulation is compatible with the sanction consisting of an administrative fine. In this case, considering the facts presented, it is deemed that the sanction that should be imposed is an administrative fine.

The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with Article 83.1 of the GDPR. In order to determine the administrative fine to be imposed, the provisions of Article 83.2 of the GDPR must be observed for the appropriate gradation of responsibility:

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“2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure for those contemplated in Article 58, paragraph 2, letters a) to h) and j). In deciding on the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

- a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of affected parties and the level of damages suffered;
- b) the intentionality or negligence in the infringement;
- c) any measures taken by the data controller or processor to mitigate the damages suffered by the affected parties;
- d) the degree of responsibility of the data controller or processor, taking into account the technical or organizational measures they have applied under Articles 25 and 32;
- e) any previous infringement committed by the data controller or processor;
- f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate any potential adverse effects of the infringement;
- g) the categories of personal data affected by the infringement;
- h) the manner in which the supervisory authority became aware of the infringement, in particular whether the data controller or processor reported the infringement and, if so, to what extent;
- i) when the measures indicated in Article 58, paragraph 2, have previously been ordered against the data controller or processor in relation to the same matter, compliance with those measures;
- j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42, and
- k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as financial benefits obtained or losses avoided, directly or indirectly, through the infringement.”

The balance of the circumstances considered allows for the imposition of a fine of €1,000.00 (one thousand euros) for the infringement of Article 13 of the GDPR.

On 30/04/2024, a voluntary payment bank deposit of €800 was received from PROSULTING at the AEPD, but without specifying the reason for the reduction of the amount by 20% to which it refers (either acknowledgment of responsibility or termination of the procedure), as is required, nor the withdrawal or renunciation of any action or appeal in the administrative route against the sanction.

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Despite three requests for clarification regarding this matter and the proposed sanction, no written correction or clarification has been received, therefore the payment is not considered valid.

Article 85 of the LPCAP establishes the following (the relevant part for the case is underlined):

“Article 85. Termination in sanctioning procedures.

1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.
2. When the sanction is solely of a pecuniary nature or when it is possible to impose a pecuniary sanction and another non-pecuniary sanction but the impropriety of the latter has been justified, voluntary payment by the alleged responsible party, at any time prior to the resolution, will imply the termination of the procedure, except with regard to the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.
3. In both cases, when the sanction is solely of a pecuniary nature, the competent authority to resolve the procedure shall apply reductions of at least 20% on the amount of the proposed sanction, which shall be cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure and their effectiveness shall be conditioned on the withdrawal or renunciation of any action or appeal in the administrative route against the sanction. The percentage of reduction provided in this paragraph may be increased by regulation.”

In the absence of the required clarifications regarding the payment and the reduction of the sanction, it is appropriate to maintain the full initial amount of the administrative fine of €1,000.00 (one thousand euros).

V

Adoption of measures

It is agreed to adopt appropriate measures to adjust its actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may “order the data controller or processor to ensure that the processing operations comply with the provisions of this Regulation, when appropriate, in a specified manner and within a specified time frame...”. The imposition of this measure is compatible with the sanction consisting of an administrative fine, as provided in Article 83.2 of the GDPR.

It is noted that failure to comply with any possible order to adopt measures imposed by this agency in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Articles 83.5 and 83.6, which may motivate the initiation of further administrative sanctioning procedures.

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Specifically, the responsible party is ordered to incorporate, within a period of ONE MONTH, the mechanisms that guarantee the provision of the information required for the interested parties under Article 13 of the GDPR, at the time of obtaining their personal data, as well as at the time of obtaining or requesting their personal data via email.

It is warned that failure to comply with the order to adopt measures imposed by this agency in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning procedures.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established, the Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on PROSULTING, S.L.N.E., with NIF B86008141, a fine of one thousand euros

(€1,000) for an infringement of Article 13 of the GDPR, classified under Article 83.5 of the GDPR.

SECOND: To order the refund to PROSULTING, S.L.N.E. of the amount of €800 that was paid on 30/04/2024, upon the opening of this sanctioning procedure. In order for this refund to be carried out, PROSULTING, S.L.N.E. must provide this AEPD, without undue delay, with the bank account code where this amount can be deposited in its favor.

THIRD: TO ORDER PROSULTING, S.L.N.E., with NIF B86008141, to certify, under Article 58.2.d) of the GDPR, within 1 month from the date this resolution becomes final and enforceable, that it has proceeded to comply with the provision of the information required for the interested parties under Article 13 of the GDPR, at the time of obtaining or requesting their personal data, also via email.

FOURTH: TO NOTIFY this resolution to PROSULTING, S.L.N.E.

FIFTH: This resolution will be enforceable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has expired, provided that the interested party has not exercised this right.

The sanctioned party is warned that it must comply with the imposed sanction of €1,000 once this resolution is enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, to the restricted account No. IBAN:

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(BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once it is executive, if the date of executiveness falls between the 1st and the 15th of each month, both inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, both inclusive, the payment deadline will be until the 5th of the second following month or the next business day thereafter.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Presidency of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Litigation Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Litigation Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file an administrative contentious appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the administrative contentious appeal. If the Agency is not aware of the filing of the administrative contentious appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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Olga Pérez Sanjuán

The Deputy Director General of Data Inspection, in accordance with Article 48.2 LOPDGDD, due to vacancy of the Presidency and Deputy Presidency

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